



Christian Grech C/O Clearance Hub

9 The Creek, Triq il-Munxar, Marsascala MSK3672

MT2713-1625

info@clearance-hub.com

Terms & Conditions - Last updated: March 23, 2025

1. Scope of Services

This agreement governs the customs brokerage services provided by **Christian Grech C/O Clearance Hub**, including but not limited to:

- **Preparation and submission of customs declarations**
- **Consultancy on customs procedures and documentation**
- **Communication with Maltese customs authorities on behalf of the Importer**

Clearance Hub is a trading name of Christian Grech, a licensed customs broker registered under VAT number MT2713-1625.

2. Legal Framework

All customs declarations are processed in accordance with:

- **Union Customs Code (UCC)** – Regulation (EU) No 952/2013 (as amended)
- **Maltese laws, including:**
 - Customs Ordinance (Cap. 37)
 - VAT Act (Cap. 406)
 - Excise Duty Act (Cap. 382)



Importer Responsibility: The Importer is responsible for compliance with all applicable EU and Maltese customs, VAT, and excise regulations.

3. Direct Representation & Liability

As a Direct Representative of the Importer (within the meaning of **Article 18 of the Union Customs Code, Regulation (EU) No 952/2013**), Christian Grech C/O Clearance Hub acts in the name of and on behalf of the Importer when submitting customs declarations, which are based exclusively on data provided by the Importer.

- The Importer remains **fully responsible for the accuracy of all information** provided for the declaration, including commodity codes (HS codes), values, and supporting documents. (In line with the UCC, the Importer is considered the declarant and bears liability for the declaration's content.)
- **Clearance Hub assumes no liability** for any penalties, errors, or enforcement actions arising from incorrect or incomplete data supplied by the Importer.
- While Clearance Hub exercises due diligence, **it shall not be held liable for unintentional errors**, provided such errors were made in good faith and without negligence on the part of the broker.

4. Classification & Permits

The Importer must ensure that:

- **All goods are correctly classified** under the appropriate customs tariff codes.
- **Any required licenses, permits, or certificates** (e.g. health permits, safety certificates, certificates of origin) are obtained **before** shipment of the goods.

5. Duties, VAT & Excise

- **Import duties, import VAT, and any excise taxes** are the sole responsibility of the Importer and must be paid **directly to Malta Customs**.
- Any late payments, fines, or penalties resulting from non-compliance or incorrect declarations remain the Importer's responsibility in full.



6. Payments & Acceptance

- Customs duties, VAT, and excise payments **must be settled before clearance** of goods can proceed (goods will not be released by customs until all applicable charges are paid).
- If no written confirmation of these terms is received from the Importer, **payment of the applicable taxes/duties will be considered implicit acceptance** of the customs declaration and these Terms & Conditions.
- The Importer **waives the right to dispute** the details of the customs declaration **after submission**, unless the Importer's formal request for correction of errors was raised **before** the declaration was submitted to customs.

7. Indemnity & Disclaimer

- The Importer agrees to **indemnify and hold harmless** the customs broker (Christian Grech C/O Clearance Hub) from any penalties, losses, costs, or legal consequences (including any assessed duties, taxes, interest, or fines) resulting from **incorrect or false information/data** provided by the Importer.
- The broker does not assume liability for any delays, seizures, or damages arising from the Importer's failure to comply with Maltese customs regulations.
- The broker's liability is **strictly limited to the service fees** paid by the Importer. It does not extend to any customs duties, taxes, penalties, fines, storage fees, or consequential damages resulting from incorrect declarations or regulatory non-compliance.

8. Data Confidentiality & Privacy

- All data and documentation provided by the Importer will be handled confidentially and in accordance with applicable data protection laws (including GDPR and relevant Maltese data protection legislation).
- Such data will be used solely for the purpose of preparing and submitting customs declarations or related compliance activities, and will not be disclosed to any third parties unless required by law or by authorities (e.g. Malta Customs) in the context of the import/export process.

9. Force Majeure

- **Clearance Hub shall not be held liable for delays, penalties, or disruptions** in clearance or delivery caused by **force majeure** events, including but not limited to:



- Government-imposed restrictions or actions (e.g. trade embargoes, sudden regulatory changes, port closures)
- Customs or IT system failures/outages that are beyond the broker's control
- Any other unforeseen events or circumstances beyond the control of the broker and the Importer

In any such events, the broker will make reasonable efforts to mitigate delays once normal operations resume, but certain timing or compliance obligations may be suspended for the duration of the force majeure event.

10. Dispute Resolution & Governing Law

- **Governing Law:** These Terms & Conditions and any dispute arising from the services provided shall be governed by and construed in accordance with the laws of **Malta**.
- **Dispute Resolution:** The parties agree to attempt to resolve all disputes amicably. If a dispute cannot be resolved through good-faith negotiations, it shall be **referred to arbitration** in Malta (in accordance with Maltese arbitration law) before any formal legal proceedings are initiated in court.

11. Acknowledgment & Agreement

By proceeding with any service provided by Christian Grech C/O Clearance Hub, the Importer **acknowledges and agrees** to all the above terms and conditions. The Importer confirms that the broker is duly authorized to act as a direct representative on the Importer's behalf for customs purposes in accordance with these terms.

For any questions or clarifications regarding these Terms & Conditions, please **contact us at** info@clearance-hub.com.

Christian Grech C/O Clearance Hub – 9 The Creek, Triq il-Munxar, Marsascala MSK 3672, Malta – VAT No. MT2713-1625 – *Email:* info@clearance-hub.com